

25STCV04874 25STCV04874

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Case Number: 25STCV04874 Hearing Date: July 17, 2026 Dept: 510

No.

11 - Armita Amini v. Tesla, Inc.

Defendant

Tesla, Inc.'s Motion to Compel Binding Arbitration

Defendant

Tesla, Inc. moves to compel arbitration of this action against it by Plaintiff Armita

Amini. Tesla, Inc. further moves to stay the action under Code of Civil

Procedure section 1281.4.

Request

for Judicial Notice

Defendant

requests that the Court take judicial notice of the complaint filed in this

action. This pleading is subject to judicial notice under Evidence Code section

452(d) as a court record. Defendant's request for judicial notice is granted.

Existence

of Agreement

The

party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (CCP § 1281.2.) It can meet the

"initial burden to show an agreement to arbitrate by attaching a copy of the

arbitration agreement purportedly bearing the opposing party's signature." (Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060.) "At this step, a

movant need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in' " California Rules of Court, rule 3.1330. (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.)

Here,

Defendant meets its initial burden by attaching a copy of the retail installment sales contract. (Kim Decl., Ex. 1.) On the bottom of the first page, it provides: "Agreement to Arbitrate: By signing below, you agree that, pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate." (Id., p. 1.) Underneath, Plaintiff's name is electronically written in cursive font. (Ibid.)

Plaintiff

argues that the agreement was not properly authenticated by the declarant and that the signed agreement itself does not show that Plaintiff agreed to the arbitration provision. However, as mentioned above, Defendant need not authenticate the document to meet its initial burden of establishing the existence of a valid agreement. Even so, Raymond Kim, Manager of Business Resolution at Tesla, Inc., attests that he is "familiar with the service and sales of Tesla vehicles, including the related creation and record-keeping procedures." (Kim Decl., ¶ 2.) Kim located a copy of Plaintiff's retail installment sales contract by searching Tesla's electronic records. (Id., ¶¶ 3, 6-8.) He states, "Given my knowledge and understanding of Tesla's procedures, the signed RISC only ends up in the electronic file (as it did here) after a consumer has executed the RISC either in person or electronically, which Plaintiff did on or about October 13, 2023." (Id., ¶ 8.) This is sufficient to authenticate the agreement and establish that Plaintiff agreed to arbitrate when she signed the retail installment sales contract. Plaintiff submits no declaration disputing the authenticity of her electronic signature.

The

Court also finds that Plaintiff's claims fall within the scope of the arbitration provision. The agreement states, "Any claim or dispute, whether in contract, tort, statute or otherwise . . . between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit

application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.” (Kim Decl., Ex. 1, at p. 5.)

Plaintiff argues that the arbitration provision in the retail installment sales contract does not cover warranty claims, citing Ford Motor Warranty Cases (2023) 89 Cal.App.5th 1324, aff’d (2025) 17 Cal.5th 1122. However, while Ford Motor Warranty established that “independent manufacturer warranties are not part of, but are independent from, retail sale contracts,” this case was decided in the context of applying equitable estoppel to permit a nonsignatory manufacturer to compel arbitration under a dealer’s sales agreement. (Id., at p. 1336.) Here, Tesla, Inc. is both the manufacturer and the seller of Plaintiff’s vehicle; thus, there is no equitable estoppel issue here that would compel a blanket exclusion of all warranty-based claims.

Waiver

Plaintiff argues Defendant waived its right to compel arbitration. Waiver occurs “when the party seeking to enforce a known contractual right has intentionally relinquished or abandoned that right.” (Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 569 (Quach).) “To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (Id. at p. 584.) “Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with the intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it.” (Ibid.)

The Court does not find that Defendant acted in a manner so inconsistent with an intent to arbitrate as to lead a reasonable factfinder to believe it abandoned its right. Defendant engaged in only minimal actions inconsistent with the right to arbitrate. Defendant filed a case management statement requesting a jury trial. However, in the same statement,

it clearly stated that it “reserves the right to file . . . a motion to compel arbitration and stay action . . . prior to trial.” (See Def. Case Mgmt Stmt, ¶ 15.) Further, Defendant did not propound any discovery requests or respond to any discovery. (See Reply, at p. 2.) Therefore, Defendant did not substantially invoke the machinery of litigation. On this record, the Court finds Defendant did not waive its right to arbitrate.

Unconscionability

Plaintiff argues the agreement is unconscionable. “Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’ ” (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 125 (OTO).) “The burden of proving unconscionability rests upon the party asserting it.” (Id. at p. 126.)

Plaintiff

shows no procedural unconscionability. “ ‘The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.’ ” (OTO, 8 Cal.5th at p. 125.) The “analysis ‘begins with an inquiry into whether the contract is one of adhesion.’ [Citation.] An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’ ” (Id. at p. 126.) For an adhesive contract, the court must consider “whether circumstances of the contract’s formation created such oppression or surprise that closer scrutiny of its overall fairness is required.” (Ibid.) “ ‘ ‘ ‘Oppression occurs where a contract involves lack of negotiation and meaningful choice, surprise where the allegedly unconscionable provision is hidden within a prolix printed form.’ ” ’ ” (Id. at p. 126.)

In the opposition brief, Plaintiff argues the contract was adhesive because it was presented in a “take it or leave it” fashion and she had no meaningful opportunity to negotiate its terms. (See Opp., at pp. 14-15.) However, Plaintiff provides no personal declaration attesting to these facts signed under penalty of perjury. In addition, an arbitration agreement offered on a “take it or leave it basis” does not render the agreement unenforceable. (See Lagatree v. Luce, Forward, Hamilton & Scripps (1999) Cal.App.4th 1105, 1127.) There is no indication that Plaintiff did not have ample time to review and sign the agreement. Thus, Plaintiff’s arguments do not support a finding of procedural

unconscionability.

Because Plaintiff

does not meet her burden in showing the agreement is procedurally

unconscionable via admissible evidence, the

Court need not and does not address whether the agreement is substantively

unconscionable. (See *Crippen v. Central Valley RV Outlet*

(2004) 124 Cal.App.4th 1159, 1167 [finding no procedural unconscionability and therefore not addressing substantive unconscionability].)

Disposition

Defendant Tesla, Inc.'s motion to

compel binding arbitration is granted. Plaintiff Armita Amini is ordered to arbitrate this action

against Defendant Tesla, Inc. The Court hereby stays the entire action pending resolution of the arbitration proceeding.